

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3980

By: Caldwell (Trey)

AS INTRODUCED

An Act relating to District Attorneys Council;
creating the Rural District Attorney Loan Repayment
Assistance Program; defining terms; providing for
maximum yearly repayments; providing for total
maximum repayments; restricting repayments to certain
qualified expenses; allowing for direct payments to
loan providers; requiring repayment by employees in
certain situations; allowing for the creation of a
selection committee; providing certain requirements
for qualifying jurisdictions; preventing vested
rights; creating the Rural District Attorney Loan
Repayment Assistance Program Revolving Fund;
establishing revolving fund characteristics;
establishing and limiting budgeting expenditures from
funds; providing for codification; and providing an
effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 215.42a of Title 19, unless
there is created a duplication in numbering, reads as follows:

This act shall be known and may be cited as the "Rural District
Attorney Loan Repayment Assistance Program".

1 SECTION 2. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 215.42b of Title 19, unless
3 there is created a duplication in numbering, reads as follows:

4 As used in the Rural District Attorney Loan Repayment Program:

5 1. "Eligible employee" means a person who is employed full-time
6 as an assistant district attorney in the State of Oklahoma and who
7 has incurred a debt pursuant to the obligations under a qualified
8 education loan;

9 2. "Qualified education loan" means a debt owed by the eligible
10 employee to any private or public entity for which repayment is
11 legally required over a period greater than one (1) year, the
12 proceeds of which were used to pay tuition, fees, or other education
13 expenses, including books and materials, to an institution of higher
14 learning, including any private college or university, for
15 coursework leading to an undergraduate or graduate degree; and

16 3. "Required payback period" means two thousand (2,000) hours
17 of full-time employment as an assistant district attorney in a
18 designated high-need jurisdiction for each Five Thousand Dollars
19 (\$5,000.00) of qualified education loan expenses paid pursuant to
20 this act.

21 SECTION 3. NEW LAW A new section of law to be codified
22 in the Oklahoma Statutes as Section 215.42c of Title 19, unless
23 there is created a duplication in numbering, reads as follows:

1 A. The District Attorneys Council, subject to available
2 funding, may make direct payments not to exceed Five Thousand
3 Dollars (\$5,000.00) in any twelve-month period, on behalf of an
4 eligible employee to any private or public entity for which a
5 qualified education loan expense is owed by the eligible employee.

6 B. With regards to payments made under this section, the
7 District Attorneys Council shall not make cumulative payments on
8 behalf of any single eligible employee that total an amount greater
9 than Fifty Thousand Dollars (\$50,000.00).

10 C. The provisions of this section shall only be applicable to
11 qualified education loan obligations incurred prior to employment as
12 an assistant district attorney or qualified education loan
13 obligations associated with education directly related to employment
14 incurred during such employment.

15 D. Payments made pursuant to this section shall be made
16 directly to the loan service provider or lending institution.

17 SECTION 4. NEW LAW A new section of law to be codified
18 in the Oklahoma Statutes as Section 215.42d of Title 19, unless
19 there is created a duplication in numbering, reads as follows:

20 A. If an eligible employee on whose behalf payment has been
21 made pursuant to this act terminates services in a designated high-
22 need jurisdiction prior to the expiration of the required payback
23 period, the employee shall be required to reimburse the payor entity
24 for the amount of the qualified education loan expense paid.

1 B. If the employee performs less than the number of hours of
2 service required for the full amount of the expenses paid,
3 reimbursement shall be made on a pro rata basis, based upon the
4 actual number of hours of service performed.

5 SECTION 5. NEW LAW A new section of law to be codified
6 in the Oklahoma Statutes as Section 215.42e of Title 19, unless
7 there is created a duplication in numbering, reads as follows:

8 A. Eligibility for participation in the Rural District Attorney
9 Loan Repayment Assistance Program shall be determined by a selection
10 committee composed of representatives of the district attorneys, in
11 coordination with the District Attorneys Council.

12 B. The committee shall designate high-need jurisdictions based
13 on factors including, but not limited to:

- 14 1. Population size;
15 2. Remoteness or rural characteristic of the district;
16 3. Length of vacancies or turnover rate;
17 4. Distance to institutions of higher education; and
18 5. Other workforce requirement and retention considerations.

19 C. Eligible employees shall submit documentation of qualified
20 education loan obligations and payments schedules annually, in a
21 manner prescribed by the committee.

22 SECTION 6. NEW LAW A new section of law to be codified
23 in the Oklahoma Statutes as Section 215.42f of Title 19, unless
24 there is created a duplication in numbering, reads as follows:

1 Nothing in this act shall be construed to create a vested right
2 to loan assistance payments. Loan assistance payments are subject
3 to availability of funds and continued eligibility as determined by
4 the administering committee.

5 SECTION 7. NEW LAW A new section of law to be codified
6 in the Oklahoma Statutes as Section 215.42g of Title 19, unless
7 there is created a duplication in numbering, reads as follows:

8 SECTION 8. There is hereby created in the State Treasury a
9 revolving fund for the District Attorneys Council to be designated
10 the "Rural District Attorney Loan Repayment Assistance Program
11 Revolving Fund". The fund shall be a continuing fund, not subject
12 to fiscal year limitations, and shall consist of all monies directed
13 for deposit to the fund by law. All monies accruing to the credit
14 of said fund are hereby appropriated and may be budgeted and
15 expended by the District Attorneys Council for the purpose of direct
16 payments for qualified education loan payments on behalf of eligible
17 employees. Expenditures from said fund shall be made upon warrants
18 issued by the State Treasurer against claims filed as prescribed by
19 law with the Director of the Office of Management and Enterprise
20 Services for approval and payment.

21 SECTION 9. This act shall become effective November 1, 2026.
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